

22STCV26733 22STCV26733

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MOTION TO QUASH

NOTICES TO APPEAR AT TRIAL

Motion filed on April 6, 2026.

MOVING PARTY: Defendants Robert George McLellan, Jr.,
Sunrise Dressingrooms, Inc., Amazon Content Services, LLC, and Picrow, Inc. dba
Pictures in a Row

RESPONDING PARTY: Plaintiff Christine Tanaka

NOTICE: OK.

RELIEF REQUESTED: Defendants move to quash Plaintiff
Christine Tanaka's notices to appear at trial directed to David E. Kelley and
Jonathan Shapiro, and request monetary sanctions of \$2,323.41.

RULING: Denied without prejudice. Sanctions denied.

BACKGROUND

Defendants filed this motion on April 6, 2026. Plaintiff

filed an opposition on June 15, 2026. Defendants filed a reply on June 22, 2026.

DISCUSSION

This action arises from a motor vehicle collision. Defendant McLellan was “hired by PICROW, INC., a production company, to drive a production truck for the Amazon television show ‘Goliath’ Season 4, when his truck made contact with a vehicle driven by Plaintiff.” (Motion, p. 3.) On March 31, 2026, Plaintiff served notices under Code of Civil Procedure section 1987 requiring David E. Kelley and Jonathan Shapiro, the credited creators and writers of “Goliath,” to appear at trial.

Defendants move to quash on the ground that Kelley and Shapiro “have no knowledge or information whatsoever regarding this litigation,” that they “were no longer working on the show during Season 4 when this incident occurred,” and that requiring their attendance “is harassing and unduly burdensome.” (Motion, pp. 2-3.) Defendants contend the testimony Plaintiff seeks is available from a less intrusive source, having “offered a Picrow, Inc. PMK who can testify regarding these matters, which Plaintiff has outright refused.” (Motion, p. 3.)

Plaintiff opposes, contending she “seeks the trial testimony of David E. Kelley and Jonathan Shapiro to establish facts that Defendants have wrongfully withheld in discovery; i.e. that Defendant Amazon is vicariously liable for the truck that rear-ended Plaintiff.” (Opposition, p. 2.) Plaintiff contends Defendants offer no evidence of burden, that “notably missing from Defendants’ Motion is any actual evidence or reasoned argument as to why testifying at trial would be unduly burdensome and harassing,” and that Defendants submitted no declaration from either witness. (Opposition, p. 4.) Plaintiff further contends the motion is premature under the April 8 order, citing the Court’s ruling that “the issues raised are more appropriately resolved as evidentiary matters at or near the time of trial.” (Opposition, p. 6.)

The Court denied Defendants’ ex parte application to quash these notices on April 8, 2026. The Court found no immediate or irreparable harm. The Court ruled that “issues of relevance, burden, and alleged harassment” were “more appropriately resolved as evidentiary matters at or near the time of trial,” and stated it “will address any challenges to the testimony

of these witnesses by motion in limine, Evidence Code section 402 hearing, or other appropriate trial procedure.” The Court ordered that Kelley and Shapiro “are not required to appear on the first day of trial absent further order of the Court.” (4/8/26 Minute Order, p. 1.)

The March 31, 2026 notices required Kelley and Shapiro to appear for the April 20, 2026 trial. On April 10, 2026, the Court vacated that trial date and continued the matter to July 26, 2027, after finding that “the required FSC materials were not submitted in compliance with the Court’s orders” and that “the matter is not trial-ready.” (4/10/26 Minute Order, p. 1.) The notices therefore do not present a current trial attendance issue. The reply’s statement that trial is set for August 4, 2026 is incorrect. (Reply, caption.)

This motion raises the same relevance, burden, and harassment grounds the April 8 order assigned to trial procedure, and asks the Court to decide them now, more than one year before trial. The Court declines to decide whether Kelley or Shapiro may offer admissible testimony at a trial set that far out. That issue is premature, and the April 8 order already directs that it be resolved by motion in limine, Evidence Code section 402 hearing, or other appropriate trial procedure. If Plaintiff serves renewed notices or subpoenas tied to the July 26, 2027 trial date, Defendants may raise any proper objection at that time.

Given the trial continuance, the Court encourages the parties to meet and confer regarding the testimony Plaintiff seeks and the means of obtaining it before further motion practice.

Sanctions are denied. Code of Civil Procedure section 1987.2, subdivision (a), permits the Court, in its discretion, to award reasonable expenses incurred in making or opposing a motion under section 1987.1 if the Court finds the motion was made or opposed in bad faith or without substantial justification, or that one or more requirements of the subpoena was oppressive. Plaintiff’s opposition was substantially justified by the trial continuance and the April 8 order, and the Court makes no finding that the March 31, 2026 notices were oppressive. Sanctions are denied.

CONCLUSION

The motion to quash is denied without prejudice as moot and premature. David E. Kelley and Jonathan Shapiro are not required to appear on

the first day of trial absent further order of the Court, and Plaintiff shall provide reasonable advance notice to all parties before calling either witness. Defendants' request for monetary sanctions is denied.